

SafeRoute Background Check Agreement

This Agreement is made and entered into by and between **SafeRoute** ("SafeRoute") and the undersigned ("User"). This Agreement shall be effective at such time as SafeRoute has sent written notification, whether via facsimile, e-mail, or otherwise, to User indicating its acceptance of the terms and conditions of the Agreement (the "Effective Date").

SafeRoute's Services

SafeRoute shall provide consumer reports and investigative consumer reports ("Screening Reports") at User's request in connection with any pre-employment or post-employment background screening of applicants (the "Applicant") or retention of employees (the "Employee"). Screening Reports may include such information as employment history, consumer credit reports, motor vehicle records, education verifications, criminal and civil records, and other background information. In the case of investigative consumer reports, SafeRoute shall also provide personal references collected and processed through various channels of information.

SafeRoute as Agent of User

User acknowledges and agrees that SafeRoute is an authorized agent of User for the purpose of investigating, researching, preparing, and returning the Screening Reports ordered by User.

Information Security

User acknowledges and understands its obligation to maintain the confidentiality and integrity of any information and User identification numbers and passwords requested from or through SafeRoute.

Compliance with Applicable Laws

User and SafeRoute shall comply in good faith with all applicable laws in the request, preparation, transmission, dissemination, and use of Screening Reports, including but not limited to the FCRA, Title VII of the Civil Rights Act, Equal Employment Opportunity Commission ("EEOC") guidelines and regulations, applicable state Consumer Reporting Acts, Investigative Consumer Reporting laws, and all other applicable federal, state, and local laws relating to the use of consumer credit reports and investigative reports.

User's Obligations

Disclosure to Applicant or Employee

User shall provide Applicant or Employee with a clear and conspicuous written disclosure that a Screening Report will be obtained for employment purposes, in a document consisting solely of such disclosure. User shall provide any additional disclosures required by the FCRA and applicable laws before requesting the report and before taking any adverse action.

Written Authorization

User shall obtain written authorization from the Applicant or Employee to obtain and use the report as required by the FCRA and applicable laws.

Certification to SafeRoute

Concurrent with making the request, User shall provide certification that complies with Section 604(b)(1) of the FCRA and, where applicable, Section 606(a)(2), along with any other certifications required by law.

Use for Employment Purposes Only

User shall use Screening Reports solely for employment purposes and not in violation of any federal or state equal employment opportunity laws.

Permissible Purpose

User certifies that Screening Reports shall be used only for permissible purposes under Section 604 of the FCRA and applicable laws.

Adverse Action Procedures

Before taking adverse action based on a Screening Report, User shall provide the Applicant or Employee with:

- A copy of the Screening Report
- A Summary of Rights under the FCRA

User shall inform the individual that SafeRoute did not make the decision and cannot explain the reasons for the action.

Confidentiality and Security

User shall maintain strict confidentiality of all information received and shall not disclose it to any third party not involved in the employment decision. Resale or improper use is prohibited and may result in civil or criminal liability.

Protection of Access Codes

Any access credentials issued shall be restricted to authorized personnel on a need-to-know basis. User shall notify SafeRoute immediately of any changes in authorized users.

Protection of Reports

User shall securely store any reports and prevent unauthorized access or disclosure.

Payment Requirements / Collection

User agrees to promptly pay for services in accordance with SafeRoute's fee schedule. Payment is due within thirty (30) days of receipt. Overdue balances may incur interest at 1.5% per month and may result in suspension of services. User agrees to pay reasonable collection costs, including attorneys' fees.

Attorneys' Fees and Costs

In any dispute, the prevailing party shall be entitled to recover reasonable expenses and attorneys' fees incurred in enforcing rights under this Agreement.

Governing Law

This Agreement shall be governed by the laws of the State specified by SafeRoute Consortium Services in its principal place of business. The parties consent to jurisdiction and venue in the appropriate state and federal courts.

Waiver

Failure to enforce any provision shall not constitute a waiver of future enforcement.

Successors

This Agreement shall bind and benefit the parties and their respective successors and assigns.

Limitation of Liability

Unless SafeRoute has engaged in gross negligence or intentional misconduct, its total liability shall be limited to the fees paid for the Screening Report. Neither party shall be liable for punitive or consequential damages.

Indemnification

By SafeRoute

SafeRoute shall indemnify User against claims arising from SafeRoute's gross negligence or intentional wrongdoing.

By User

User shall indemnify SafeRoute against claims arising from illegal use of reports, negligence, failure to comply with laws, or improper employment decisions.

Warranty

SafeRoute warrants that services will be performed professionally and in accordance with industry standards. User acknowledges that information is obtained from third-party sources and accuracy cannot be guaranteed. Responsibility for source data rests with those sources.

Term

This Agreement shall remain in effect until terminated as follows:

- Either party may terminate with 30 days written notice
- Immediate termination for material breach not cured within 10 days
- Immediate termination by SafeRoute for delinquency, violations, or legal requirements

Signatures

Name of User (Company Name): _____

Printed Name & Title: _____

Authorized Signature: _____

Date: _____

End User Certification of Use for Employment Purposes

In compliance with the Fair Credit Reporting Act, the End User certifies that consumer reports will be used only for employment-related purposes and in accordance with all applicable laws. The End User further certifies that disclosures, authorizations, adverse action procedures, confidentiality, and record retention requirements will be followed.

Name of End User (Company): _____

Authorized Signer: _____

Signature: _____

Date: _____

Address: _____

Access Security Requirements (Summary)

SafeRoute and User agree to implement appropriate safeguards to protect consumer data, including:

- Strong access controls and unique user credentials
- Password protection and confidentiality
- Secure storage and transmission of data
- Regular system updates and vulnerability management
- Anti-virus and anti-spyware protections
- Physical security controls
- Secure network protections (firewalls, encryption, monitoring)
- Staff training and incident response procedures
- Secure disposal of sensitive information

Failure to comply may result in termination of services and potential liability under applicable laws.